

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: July 2, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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100	Palmer vs. Holmes, 23-01362888	Defendant Warren Holmes will and hereby does move for an order: 1. Quashing Plaintiff's deposition subpoenas for production of business records directed to HCT Packaging, Inc., Mana Products, Inc., and First Stop Legal Documents 2. In the alternative, modifying the subpoenas to exclude trade secrets, patentable designs, mechanical drawings, product innovations, manufacturing specifications, and other proprietary intellectual property; 3. Issuing a protective order designating responsive materials as 'Highly Confidential' with disclosure limited to Plaintiff's counsel and designated experts only, with a

		carve-out permitting Defendant (appearing pro per) to review materials under appropriate restrictions; and 4. Awarding sanctions for abusive subpoena practice. Defendant brings this Motion pursuant to Code Civ. Proc., § 1987.1(a), which provides: If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person. Additionally, a motion to quash production of documents at a deposition must be accompanied by a separate statement setting forth the particular documents or demands at issue and the factual and legal reasons why production should not be compelled. [See CRC 3.1345(a)(5)] In this instance, on December 8, 2025, Plaintiff's counsel served deposition subpoenas for the production of business records on non-parties: (1) HCT Packaging, Inc. ("HCT") and (2) Mana Products, Inc. ("Mana"); and (3) First Stop Legal Documents ("First Stop"). (Decl. Dhaliwal¶12.) On 12/22/2025 Defendant objected. (Decl. Holmes¶13.) Thereafter on 12/31/2025 Defendant filed this Motion. (ROA 198.) Notably, despite this Motion involving three separate subpoenas and thirty-one (31) separate document requests, Defendant failed to file a separate statement as required by CRC 3.1345(a)(5). While Defendant is in pro per, this does not afford him special treatment. Pro pers must also abide by the same procedural rules – e.g., the Code of Civil Procedure and the California Rules of Court. (See <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284 ["pro per litigants are not entitled to special exemptions from the California Rules of Court or Code of Civil Procedure"]; <i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th 1229, 1246-1247 (internal citations and quotations omitted) ["Under the law, a
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		party may choose to act as his or her own attorney. Such a party is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys. Thus, as is the case with attorneys, pro. per. litigants must follow correct rules of procedure.”].) For this reason, the Motion is DENIED without prejudice. Because this issue was raised by the Court, no sanctions will be imposed. Additionally, the Court notes that from October-December 2025 Plaintiff’s counsel and Defendant attempted to work out a Stipulation and Protective Order with no resolution. (Decl. of Dhaliwal ¶¶5-11.) Moreover, there are four more pending discovery motions on calendar in August 2026 and January 2027 (trial is 8/3/2026). The Court encourages the parties to continue their meet and confer efforts. <i>Plaintiff to give notice.</i>
101	Rodriguez vs. Saathoff, 25-01531630	Defendants Bradley Jordan Saathoff and J.B. Hunt Transport Services, Inc. move for an order consolidating this action with Nunez vs. J B Hunt Transport Inc, Case No. 30-2026-01555419-CU-PA-CJC for all purposes. When there are actions involving common questions of law or fact pending, a court may order a joint trial of any or all of the matters in issue in the actions or may order all the actions consolidated, or such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay. (Code Civ. Proc., § 1048(a).) The instant action is a personal injury suit arising out of a January 5, 2025 vehicle collision. Plaintiff Luz Jessica Rodriguez alleges her vehicle was struck by a vehicle operated by Saathoff and owned by J.B. Hunt. The second action was filed by Yadira Nunez against the same defendants for motor vehicle and general negligence based on the same collision. Because these actions arise out of the same incident, they will involve common questions of fact regarding the vehicle collision. Moreover, it is likely that they will involve common questions of law, such as respondeat superior liability and issues regarding comparative fault. Thus, the Court finds consolidation for all purposes to be warranted here. In light of the above, the Motion to Consolidate is GRANTED. The Case Management Conference is continued to August 13, 2026 at 1:30 p.m.